

FOURTH AMENDMENT TO THE DECLARATIONS OF
CONDOMINIUM, COVENANTS, CONDITIONS, RESTRICTIONS AND
EASEMENTS FOR THE CONDOMINIUM PLAT OF TROY
COMMERCIAL PARK CONDOMINIUM

Document Number

Document Title



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BETH PABST

REGISTER OF DEEDS

ST. CROIX CO., WI

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EXEMPT #:

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PAGES: 11

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Name and Return Address

Leo A. Beskar
Attorney at Law
219 N. Main Street
River Falls, WI 54022

Parcel Identification Number (PIN)

**PINs: 040-1330-01-000, 040-1330-02-000, 040-1330-03-000, 040-1330-04-000, 040-1330-05-000,
040-1330-06-000, 040-1330-07-000, 040-1330-08-000, 040-1330-09-000, 040-1330-10-000,
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040-1330-42-000, 040-1330-43-000, 040-1330-44-000, 040-1330-45-000, 040-1330-46-000,
040-1330-47-000, 040-1330-48-000, 040-1330-49-000, 040-1330-50-000, 040-1330-51-000,
040-1330-52-000, 040-1330-53-000, 040-1330-54-000 and 040-1062-30-003**

THIS PAGE IS PART OF THIS LEGAL DOCUMENT – DO NOT REMOVE.

This information must be completed by submitter: document title, name & return address, and PIN (if required). Other information such as the granting clause, legal description, etc., may be placed on this first page of the document or may be placed on additional pages of the document.

WRDA Rev. 12/22/2010

**FOURTH AMENDMENT TO THE DECLARATIONS
OF CONDOMINIUM, COVENANTS, CONDITIONS, RESTRICTIONS
AND EASEMENTS FOR THE CONDOMINIUM PLAT
OF TROY COMMERCIAL PARK CONDOMINIUM**

THIS FOURTH AMENDMENT is made on this 3rd day of September, 2024, by E.W. Homes, Inc., a Wisconsin corporation, by Mark Sylla, its president (hereinafter referred to as "Declarant").

RECITALS

1. On or about April 13, 2022, Declarant entered into a Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium (hereinafter referred to as "Covenants"). These Covenants were recorded in the Office of the Register of Deeds for St. Croix County, Wisconsin on May 3, 2022, as Document No. 1152480.
2. On or about June 22, 2022, Declarant entered into a First Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium (hereinafter referred to as "First Amendment"). This First Amendment was recorded in the Office of the Register of Deeds for St. Croix County, Wisconsin on August 4, 2022, as Document No. 1157010.
3. On or about October 30, 2023, Declarant entered into a Second Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium (hereinafter referred to as "Second Amendment"). This Second Amendment was recorded in the Office of the Register of Deeds for St. Croix County, Wisconsin, on November 6, 2023, as Document No. 1173006 for real estate legally described on Exhibit A, which is attached hereto and incorporated herein.
4. On or about August 22, 2024, Declarant entered into a Third Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium (hereinafter referred to as "Third Amendment"). This Third Amendment was recorded in the Office of the Register of Deeds for St. Croix County, Wisconsin, on August 27, 2024, as Document No. 1182824 for real estate *now* legally described on Exhibit A, which is attached hereto and incorporated herein.
5. The Declarant desires to amend the above described Declaration, First Amendment, Second Amendment and Third Amendment to expand the condominium by correcting the number of units previously added in the Third Amendment and the property is hereby submitted to the condominium form of ownership as provided in Chapter 703, Wisconsin statutes.

NOW, THEREFORE, the Declarant hereby amends the Covenants as follows:

A. Page 3, second paragraph of Paragraph B, of the Covenants, Paragraph B of the Second Declaration and Paragraph A of the Third Declaration are hereby deleted and the following shall be inserted in its place:

The maximum number of Units in the Condominium shall be 213. The total number of Units in the condominium shall now be 213 Units.

B. Article III, Section 1, of the Covenants, Paragraph C of the Second Declaration and Paragraph B of this Third Declaration shall be deleted and the following paragraph shall be inserted in its place.

Section 1. Percentage Interest. The undivided percentage interest in the Common Elements appurtenant to each Unit shall be a percentage equal to one divided by the total number of Units. If the number of Units changes due to expansion of the Condominium, the percentage interest shall be recalculated. Each Unit's percentage shall be .469483%.

C. Article VII, Section 1 of the Covenants, Paragraph D, Section 1 of the Second Declaration and Paragraph C of the Third Declaration shall be deleted and the following shall be inserted in its place:

Section 1. Percentage Interest. The undivided percentage interest in the Limited Common Elements appurtenant to each Unit shall be a percentage equal to one divided by the total number of Units. If the number of Units changes due to expansion of the Condominium, the percentage interest shall be recalculated. Initially, each Unit's percentage shall be .469483%.

D. The legal description contained on Exhibit C of the Covenants, Exhibit C of the Second Amendment and Exhibit C of the Third Amendment shall be deleted and shall be replaced by Exhibit C, which is attached hereto and incorporated herein.

E. All other terms and conditions of the original Covenants, First Amendment, Second Amendment and Third Amendment which are not affected by the Fourth Amendment shall remain in full force and effect.

Dated this 2nd day of September, 2024.

E.W. Homes, Inc.

By: [Signature]

Mark Sylla, its president

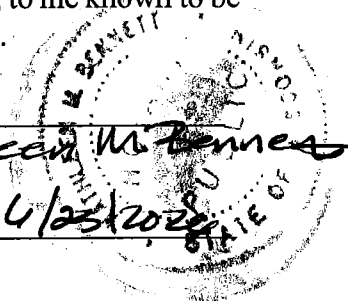
STATE OF WISCONSIN)
) ss.
COUNTY OF PIERCE)

Personally came before me this 2nd day of September, 2024, the above named E.W. Homes, Inc., a Wisconsin corporation, by Mark Sylla, its president, to me known to be the person who executed the foregoing instrument and acknowledged the same.

[Signature]
Notary Public

State of Wisconsin

My commission expires 6/23/2028



THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

CONSENT OF MORTGAGEE

Alliance Bank, the owner and holder of a Mortgage upon the real property described in the foregoing instrument herewith joins and consents therein.

Dated this 2nd day of September, 2024.

Alliance Bank

By: Gordon J. Boos

STATE OF WISCONSIN)

COUNTY OF Dane) ss.

Personally came before me this 2nd day of September, 2024, the above named Alliance Bank, by Gordon J. Boos, its Loan Officer, to me known to be the person who executed the foregoing instrument and acknowledged the same.

Kathleen M. Barnes
Notary Public
State of Wisconsin

My commission expires 6/23/2026

THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

UNIT OWNER APPROVAL

The undersigned, E.W. Homes, Inc., owning 86.5% or more of the Units in Troy Commercial Park Condominium, hereby consents and approves the Fourth Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium.

Dated this 2nd day of September, 2024.

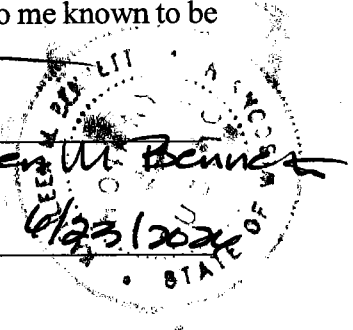
E.W. Homes, Inc.

By: [Signature]
Mark Sylla, its president

STATE OF WISCONSIN)
) ss.
COUNTY OF PIERCE)

Personally came before me this 2nd day of September, 2024, the above named E.W. Homes, Inc., a Wisconsin corporation, by Mark Sylla, its president, to me known to be the person who executed the foregoing instrument and acknowledged the same.

[Signature]
Notary Public
State of Wisconsin
My commission expires 6/23/2026



THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

APPROVAL

The Town of Troy has reviewed the above Fourth Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium and has approved the same.

Dated this 3rd day of SEPTEMBER, 2023.

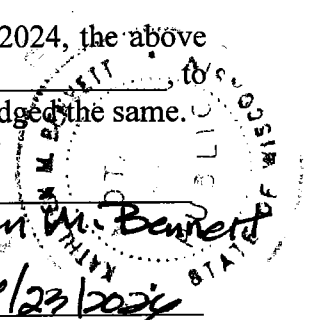
TROY OF TROY

By 

STATE OF WISCONSIN)
) ss.
COUNTY OF Pierce)

Personally came before me this 3rd day of September, 2024, the above named Town of Troy, by Douglas J. Paven, its Town Clerk, to me known to be the person who executed the foregoing instrument and acknowledged the same.


Notary Public Kathleen M. Bennett
State of Wisconsin
My commission expires 6/23/2024



THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

EXHIBIT A

Units 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 225, 226, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 325, 326, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 625, 626, 627, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829 and 830 of the Plat of Troy Commercial Park Condominium, St. Croix County, Wisconsin being part of Lot One (1) of Certified Survey Map No. 32-7113 in Volume 32, Page 7113, as Document Number 1152469 filed in St. Croix County Register of Deeds Office on May 3, 2022, being part of the Southwest Quarter of the Southeast Quarter and part of the Northwest Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin.

EXHIBIT C

Units 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829 and 830 of the Plat of Troy Commercial Park Condominium, St. Croix County, Wisconsin being part of Lot One (1) of Certified Survey Map No. 32-7113 in Volume 32, Page 7113, as Document Number 1152469 filed in St. Croix County Register of Deeds Office on May 3, 2022, being part of the Southwest Quarter of the Southeast Quarter and part of the Northwest Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin.

AND

The attached Troy Commercial Park Condominium Third Addendum.

TROY COMMERCIAL PARK CONDOMINIUM THIRD ADDENDUM

AN EXPANDABLE CONDOMINIUM
TOWN OF TROY, ST. CROIX COUNTY
A RECONFIGURATION OF THE UNITS OF TROY
COMMERCIAL PARK CONDOMINIUM SECOND ADDITION

LOT 2 | LOT 1
CERTIFIED SURVEY MAP
VOLUME 17, PAGE 4604

- LEGEND**
- UNIT DESIGNATION
 - FOUND 1" IRON PIPE
 - FOUND 3/4" IRON REBAR
 - EXISTING 15' UTILITY EASEMENT

SCALE IN FEET 1" = 200'

CURVE DATA TABLE

NUMBER	RADIUS LENGTH	CENTRAL ANGLE	CHORD BEARING	CHORD LENGTH	ARC LENGTH	TANGENT IN	TANGENT OUT
C1	960.00'	20°16'56"	N10°35'55"W	338.06'	339.83'	N02°44'24"W	N07°27'27"W
C2	167.00'	32°23'52"	S73°20'37"W	93.18'	94.43'	S57°08'41"W	S89°32'33"W
C3	500.00'	73°55'24"	S20°10'59"W	60.13'	64.51'	S16°46'43"E	S57°08'41"W
C4	800.00'	253°55'24"	N69°49'01"W	127.85'	354.54'	N57°08'41"E	S16°46'43"E
C5	233.00'	32°23'52"	N73°20'37"E	130.00'	131.75'	N89°32'33"E	N57°08'41"E
C6	800.00'	129°50'17"	S48°08'25.5"W	144.91'	181.28'	N66°56'26"W	S16°46'43"E
C7	800.00'	124°05'07"	N04°53'52.5"W	141.33'	173.26'	N57°08'41"E	N66°56'26"W

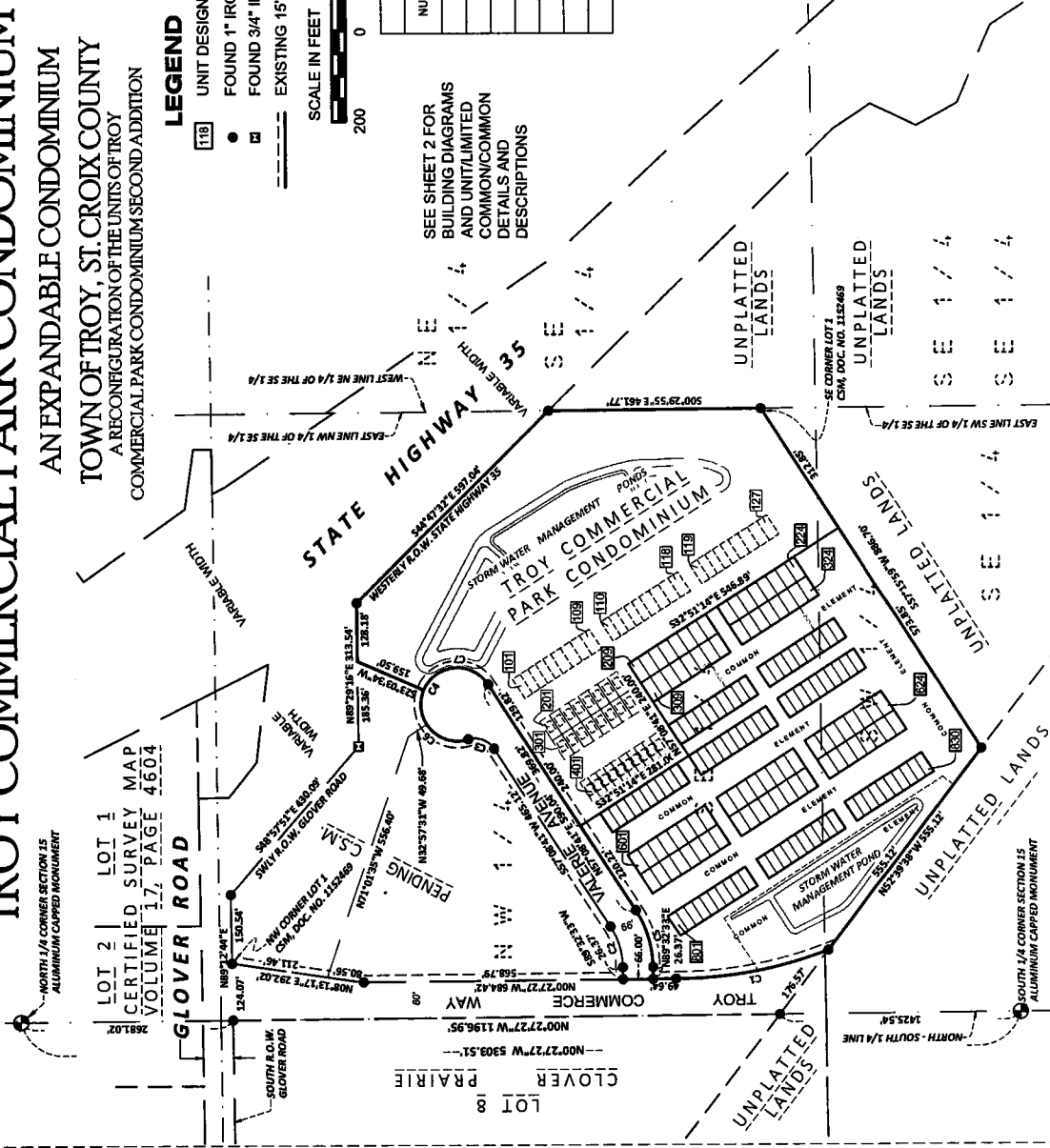


I, TY R. DODGE, WISCONSIN PROFESSIONAL LAND SURVEYOR, HEREBY CERTIFY THAT THIS PLAT IS A CORRECT REPRESENTATION OF THE CONDOMINIUM DESCRIBED AND THE IDENTIFICATION AND LOCATION OF EACH UNIT AND THE COMMON ELEMENTS CAN BE DETERMINED FROM THE PLAT.

TY R. DODGE, P.L.S. NO. 2484
AUTH CONSULTING AND ASSOCIATES
2920 ENLOE STREET SUITE 101
HUDSON WI 54016
authconsulting.com

DRAFTED BY TY DODGE PROJECT 5010-175

SHEET 1 OF 2



TROY COMMERCIAL PARK CONDOMINIUM THIRD ADDENDUM



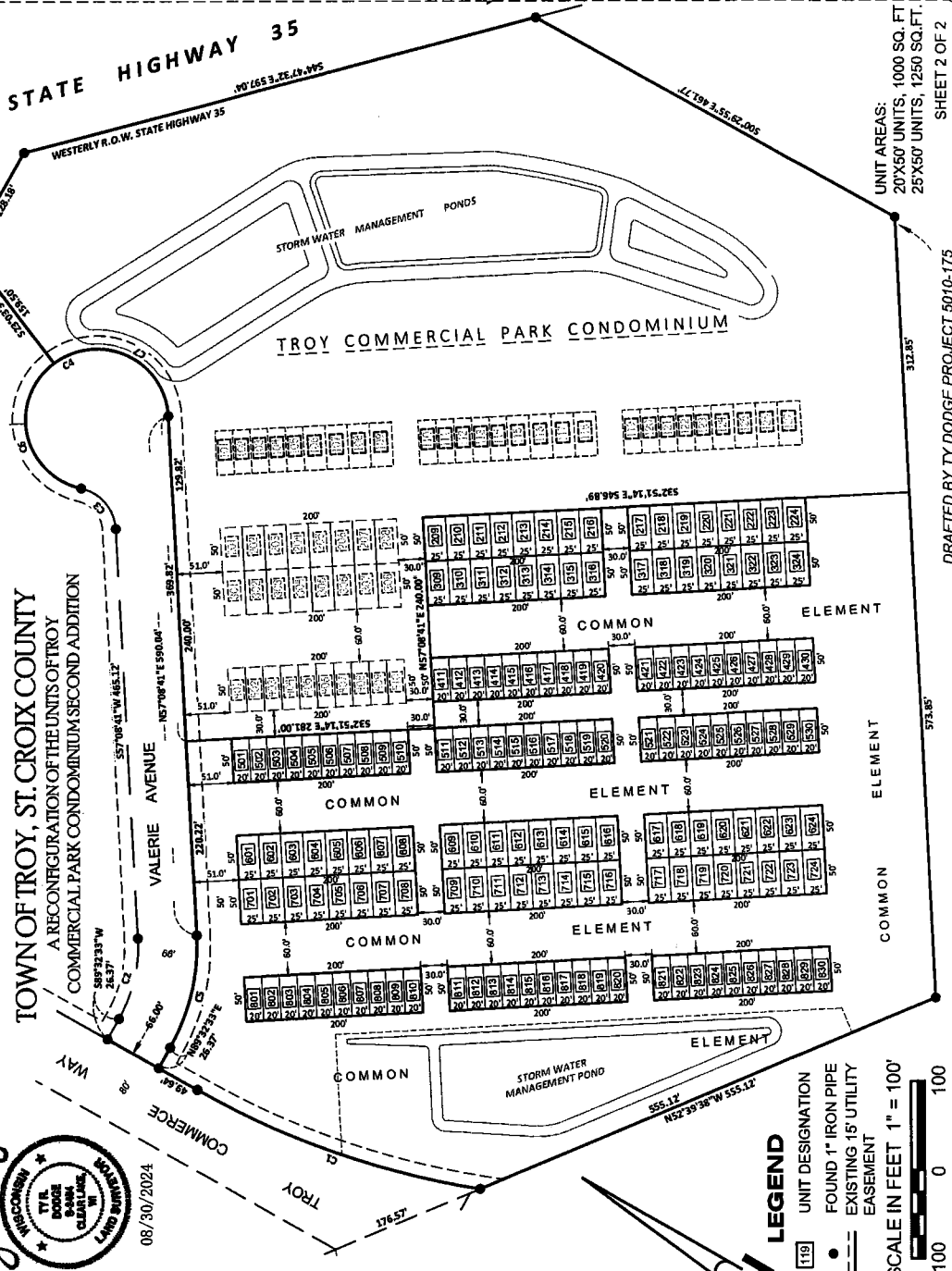
Third Addendum declared area property description:
Part of the Southwest Quarter of the Southeast Quarter and part of the Northwest Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin, being part of Lot 1 of a Certified Survey Map recorded in Volume 32, Page 7113 as document number 1152469 in the Register of Deeds Office for said county and described as follows:

Commencing at the southeast corner of said Lot 1;
thence S 57° 15' 59" W a distance of 312.85 feet to the point of beginning;
thence S 57° 15' 59" W a distance of 573.85 feet to the southwest corner of said Lot 1;
thence N 52° 39' 38" W a distance of 555.12 feet;
thence along the arc of a curve, concave easterly, a distance of 339.83 feet, said curve having a radius of 960.00 feet and a chord which bears N 10° 35' 55" W a distance of 338.06 feet;
thence N 89° 32' 33" E a distance of 26.37 feet;
thence along the arc of a curve, concave northerly, a distance of 131.75 feet, said curve having a radius of 233.00 feet and a chord which bears N 73° 20' 37" E a distance of 130.00 feet;
thence N 57° 08' 41" E a distance of 220.22 feet;
thence S 32° 51' 14" E a distance of 281.00 feet;
thence N 57° 08' 41" E a distance of 546.88 feet to the point of beginning.
Containing 11.51 Acres.

Troy Commercial Park Condominium entire area property description:
Part of the Southwest Quarter of the Southeast Quarter and part of the Northwest Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin, being part of Lot 1 of a Certified Survey Map recorded in Volume 32, Page 7113 as document number 1152469 in the Register of Deeds Office for said county EXCEPT that part described as follows:

Beginning at the northwest corner of said Lot 1;
thence N 89° 12' 44" E a distance of 150.54 feet;
thence S 48° 57' 51" E a distance of 80.09 feet;
thence N 89° 29' 16" E a distance of 185.36 feet;
thence S 23° 03' 34" W a distance of 150.50 feet;
thence along the arc of a curve, concave southeasterly, a distance of 181.28 feet, said curve having a radius of 80.00 feet and a chord which bears S 48° 08' 25.5" W a distance of 144.91 feet;
thence along the arc of a curve, concave westerly, a distance of 64.51 feet, said curve having a radius of 50.00 feet and a chord which bears S 20° 10' 59" W a distance of 60.13 feet;
thence S 57° 08' 41" W a distance of 465.12 feet;
thence along the arc of a curve, concave northerly, a distance of 94.43 feet, said curve having a radius of 167.00 feet and a chord which bears S 73° 20' 37" W a distance of 93.18 feet;
thence S 89° 32' 33" W a distance of 26.37 feet;
thence N 00° 27' 27" W a distance of 568.79 feet;
thence N 08° 13' 17" E a distance of 80.56 feet;
thence N 08° 13' 17" E a distance of 211.46 feet to the point of beginning.
Containing 23.142 acres.

AN EXPANDABLE CONDOMINIUM
TOWN OF TROY, ST. CROIX COUNTY
A RECONFIGURATION OF THE UNITS OF TROY
COMMERCIAL PARK CONDOMINIUM SECOND ADDITION



LEGEND

- UNIT DESIGNATION
- FOUND 1" IRON PIPE
- EXISTING 15' UTILITY EASEMENT

SCALE IN FEET 1" = 100'

100 0 100

UNIT AREAS:
20'X50' UNITS, 1000 SQ. FT.
25'X50' UNITS, 1250 SQ. FT.
SHEET 2 OF 2

DRAFTED BY TY DODGE PROJECT 5010-175